



Non-Disclosure Agreement

This NON-DISCLOSURE AGREEMENT ("Agreement"), is made and entered as on _____ (the "Effective Date"), by and between:

1. **SISA Information Security Pvt Ltd** a company incorporated under Companies Act, 1956, with its registered office located at No. 79, Road Number 9, KIADB IT PARK, Arebinnamangala Village, Jala Hobli Bengaluru, Karnataka India - 562149 (Hereinafter called as the "Disclosing Party")
2. _____. An individual with his passport no. _____ and permanent residential address at _____ (Receiving Party).

The Receiving Party and Disclosing Party are hereinafter referred to individually as a "**Party**" and together as the "**Parties**".

RECITALS.

WHEREAS:

- A. The Disclosing Party desires to grant internship to the receiving party.
- B. In the course of such discussion, the Disclosing Party may have to disclose certain confidential information ("Confidential Information") to the Receiving Party.
- C. In order to protect the confidential information, the Disclosing Party has insisted on execution of this agreement.

NOW, THEREFORE, in consideration of the mutual covenants and premises, the parties agree as follows:

1. Confidential Information:

- 1.1 "Confidential Information" means all nonpublic information which the Receiving Party may receive during their employment tenure with the Disclosing Party.
- 1.2 Confidential Information includes, without limitation (i) nonpublic information relating to the Disclosing Party's technology, internal processes, products, services, processes, data, customers, business plans and methods, promotional and marketing activities, finances and other business affairs, (ii) third-party information that the Disclosing Party is obligated



to keep confidential, and (iii) the nature, content and existence of a Relationship, discussions or negotiations between the parties.

1.3 Confidential information also includes all such information which is of the nature as described in 1.1 and 1.2 and belongs to Disclosing Party's subsidiaries and affiliate entities.

2. Exclusions: Confidential information shall not include following information:

- A. Previously known to the Receiving Party without an obligation or confidence owed to the Disclosing Party.
- B. Independently developed by or for the Receiving Party without use of or access to confidential information.
- C. Acquired by the Receiving Party from a third party which is not known by the Receiving Party to be under an obligation of confidence owed to the Disclosing Party with respect to such information, or
- D. Which is or becomes publicly available through no breach of this agreement by the Receiving Party.

3. Permitted Use and Disclosure: The Receiving Party shall:

- A. Protect the secrecy of the confidential information by using the same degree of care, but no less than a reasonable degree of Care, to prevent the unauthorized use, dissemination, or publication of the confidential information as the Receiving Party uses to protect its own Information of a like nature,
- B. Use such confidential information for exercising its rights and performing its obligations under this agreement.
- C. Disclose such confidential information to any party, if required, only to the extent necessary in relation to accomplishment of the purpose of this agreement.
- D. Any information shared in pursuance of this agreement shall not be reverse engineered, pledged, hypothecated, alienated, and licensed without the written consent of Disclosing Party.
- E. The information shared shall not be used in such a way which may be prejudicial to the business of the Disclosing Party.
- F. Receiving Party shall not disclose any Confidential Information in whole or part to any third party;
- G. Receiving Party shall not use the Confidential Information for any purpose other than the Purpose; and
- H. Receiving Party shall not copy any of the Confidential Information without prior written consent of Disclosing Party.

4. Compelled Disclosure: To the extent absolutely necessary, the Receiving Party may disclose confidential information, if required by any judicial, regulator or governmental request, compliance requirements or order, provided that the Receiving Party will provide with sufficient prior written notice of such obligations, requirements or order to the

Disclosing Party so that the Disclosing Party shall contest such request, requirement or order to oppose the disclosure of confidential information.

5. Ownership:

5.1 The Disclosing Party is and shall be the owner of the confidential information.

The Disclosing Party's disclosure of Confidential Information will not constitute an express or implied grant to the Receiving Party of any rights to the information so disclosed.

6. Notice:

The Receiving Party will notify the Disclosing Party promptly upon discovery of any unauthorized use or disclosure of Confidential Information or any other breach of this Agreement by the Receiving Party. The Receiving Party will cooperate with the Disclosing Party to help the Disclosing Party regain possession of such Confidential Information and prevent its further unauthorized use and disclosure. Any notice required or permitted to be given is to be provided in writing to the person and at the address listed in this agreement, or certified mail, return receipt requested.

7. Term and Protection Period:

7.1 The agreement shall be in effect for a period of three years following the effective date.

7.2 Following the expiry or termination of the agreement the obligation to confidentiality shall remain operational, and clause 3,4,5 and 9 shall remain operational indefinitely.

7.3 Subject to compliance with law, the Receiving Party will return or destroy all tangible materials or portions thereof constituting Confidential Information (including, without limitation, all summaries, copies and excerpts of Confidential Information) promptly following the Disclosing Party's written request.

8. Indemnity and Injunctive Relief:

8.1 The receiving party shall protect, indemnify and hold the Disclosing Party harmless from any loss suffered by the it due to the unauthorized use of the confidential information by the receiving party, due to willful and negligent acts of the receiving party.

8.2 The Receiving Party acknowledges that a breach of its obligations under this Agreement could cause irreparable harm to the Disclosing Party as to which monetary damages may be difficult to ascertain or an inadequate remedy. The Receiving Party therefore agrees that the Disclosing Party will have the right, in addition to its other rights and remedies, to seek injunctive relief for any violation of this Agreement.

8.3 No failure to enforce any of its right by a party shall not constitute waiver of such right.

9. Assignment:

9.1 The parties shall not assign the agreement without prior written consent of Receiving Party. Any assignment without a written consent shall be in violation of this provision shall be null and void.



10. Governing Laws This Agreement shall be governed by the laws of the Republic of India without reference to its conflicts of laws principles. Any disputes or differences arising out of or in relation to this Agreement shall be submitted to exclusive jurisdiction of courts in the State of Texas.

11. Severability: If any provision of this agreement is or become illegal, invalid or unenforceable in any jurisdiction, the illegality, invalidity or unacceptability of that provision will not affect validity of any other provisions of this agreement.

12. ISMS Policy: In the event that the Receiving Party handles Disclosing Party's IT assets or organization wide information in the course of the engagement, the Receiving Party hereby agrees to follow Disclosing Party's ISMS policy.

13. Notices: Any notice required or permitted to be given is to be provided in writing to the person and at the address listed in this agreement, or certified mail, return receipt requested. Any notice regarding confidentiality to be sent to Disclosing Party can be sent to legal@sisainfosec.com.

IN WITNESS WHEREOF, the parties have executed this agreement by their duly authorized officers to be effective as of the effective date.

RECEIVING PARTY	SISA INFORMATION SECURITY PVT. LTD. I HAVE THE AUTHORITY TO BIND THE COMPANY
Signature:	Signature:
Name:	Name:
Date Signed:	Title:
	Date Signed: